

Amendment No. 1 to HB0087

White
Signature of Sponsor

AMEND Senate Bill No. 134

House Bill No. 87*

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. This act is known and may be cited as "The Learning Pod Protection Act."

SECTION 2. Tennessee Code Annotated, Title 49, Chapter 6, is amended by adding Sections 3-6 as a new part.

SECTION 3.

As used in this part:

(1) "Learning pod" means a voluntary association of parents who are choosing to group their children together at various times or places to participate in, or enhance, their child's kindergarten through grade twelve (K-12) education, regardless of whether payment is made for any services provided to the children participating in the learning pod. A "learning pod" is not a nonpublic school as defined in § 49-6-3001(c)(3);

(2) "Operation of a learning pod" means the organization, facilitation, management, operation, or the educational activity of a learning pod in a facility, home, or other structure by the parents of children who are participating in the learning pod and any other individuals assisting those parents for purposes of the learning pod; and

(3) "Parent" means the parent or guardian of a child who has not graduated from high school or reached twenty-two (22) years of age, whichever comes first.

SECTION 4. The purpose of this part is to allow parents to voluntarily participate in or associate with learning pods to advance the parents' children's kindergarten through grade twelve (K-12) education without being subject to regulation.

SECTION 5.

(a) The state, a local government, or an LEA shall not regulate or control a learning pod. Notwithstanding another law to the contrary, a learning pod is exempt from state and local regulation pertaining to education or educational facilities in this state, including, but not limited to:

(1) All provisions of this title and state board of education or department of education rules, policies, and guidelines, including, but not limited to:

(A) Section 49-1-104 and any state board policy on special education caseload and class size standards, and any other law, rule, policy, or guideline concerning class size standards, caseloads, and the number of teachers required for certain numbers of students;

(B) Chapter 5, part 1 of this title, § 49-5-403, and rules of the state board on educator licensure, and any other law, rule, policy, or guideline concerning licensure, endorsement, and certifications of teachers or other staff;

(C) Section 49-5-413 and any other law, rule, policy, or guideline concerning criminal history records checks of teachers, staff, or contractors and their employees; and

(D) Rules of the state board on school facilities or any other law, rule, policy, or guideline concerning school facilities;

(2) Local and state building or fire codes adopted pursuant to title 68, and any rules of the department of commerce and insurance, division of fire prevention, on fire prevention applicable to educational facilities. A facility, home, or other structure used by a learning pod must meet the building and fire safety standards for the building's primary use and must be equipped with smoke alarms or smoke detection system. If the facility, home, or other structure contains a fuel-burning appliance or has an attached garage, then carbon monoxide alarms must be installed in the facility, home, or structure; and

(3) Any other state or local statute, rule, or code that would not be applicable to a group, building, or facility but for the operation or presence of a learning pod. The presence of a learning pod does not constitute a change in occupancy.

(b) Notwithstanding another law to the contrary, a state, local, or LEA employee shall not initiate or conduct any site inspection or other investigation or visit of a property, building, facility, or location being used by a learning pod that would not have been initiated or made but for the operation or presence of a learning pod.

(c) An LEA shall not take any action or otherwise discriminate against or distinguish a student or parent on the basis of their participation in a learning pod.

(d) Notwithstanding another law to the contrary, a state agency, local government, or LEA shall not require a learning pod to register or otherwise report its existence or any information related to the operation or activities of the learning pod to the state agency, local government, or LEA.

(e) A child who participates in a learning pod satisfies the compulsory school attendance requirements applicable to the child pursuant to § 49-6-3001, if the child is enrolled in a public school, as defined in § 49-6-3001(c)(3); a church-related school, as defined in § 49-50-801; or a private school, as defined in § 49-6-3001(c)(3). If a child is not enrolled in a public school, church-related school, or private school, then the child's parent must comply with the requirements of § 49-6-3050(b) for the child's participation in a learning pod to satisfy compulsory school attendance requirements.

SECTION 6. The following burdens of proof apply to administrative or judicial hearings or other actions regarding this part:

(1) Questions regarding compliance with any law, rule, policy, guideline, or standard of this state, a local government, or an LEA, and questions regarding any other action taken with regard to this part, are judicial questions that must be determined without regard to any assertion of compliance or noncompliance with this part; and

(2) The state, a local government, or an LEA that adopted the law, rule, policy, guideline, or standard, or that took an action with regard to a learning pod, including the parents and students participating in a learning pod, is required to establish by clear and convincing evidence that the law, rule, policy, guideline, standard, or action:

(A) Does not unduly impede the freedom of parents or guardians to provide care for, and supervision of, their children;

(B) Does not single out educational activities while similar gatherings of children for recreational or social activities remain unregulated;

(C) Is narrowly tailored to protect the public health and safety; and

(D) Does not otherwise conflict with the requirements of this part.

SECTION 7. This act takes effect upon becoming a law, the public welfare requiring it.